

S	E	R	V	E	D
August 14, 2018					
FEDERAL		MARITIME		COMMISSION	

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-08

**CARLSTAR GROUP LLC f/k/a CARLISLE TRANSPORTATION PRODUCTS, INC.
and CTP TRANSPORTATION PRODUCTS, LLC**

v.

UTi, UNITED STATES, INC.; UTi UNITED STATES, LLC; and DSV AIR & SEA, INC.

ORDER ON MOTION TO STAY PROCEEDINGS

On August 10, 2018, the parties filed a joint motion to stay proceedings. The motion states that they are requesting “an order staying all proceedings” and that “the Parties reached an agreement-in-principle to resolve this proceeding to the satisfaction of both Parties through a settlement agreement.” Motion at 1. The parties indicate that they will submit a motion to approve the settlement once the agreement is finalized. Motion at 1.

The portion of this proceeding currently pending before the Office of Administrative Law Judges (“OALJ”) has discovery deadlines beginning this week. Because the Commission has a policy in favor of settlement, those deadlines will be extended briefly. The case was previously stayed twice while the parties mediated the dispute with the Commission’s Office of Consumer Affairs & Dispute Resolution and the case has been pending for almost a year. If the parties are unable to finalize the settlement within a month, the parties will need to proceed.

The Commission is currently reviewing a partial dismissal issued in this proceeding. This order does not address the portion of the proceeding that is pending before the Commission.

For the reasons stated above, it is hereby **ORDERED** that the OALJ proceeding will be stayed for thirty-one days to allow the parties time to finalize their settlement agreement. If the settlement is not finalized, all deadlines in the July 11, 2018, order setting briefing schedule are delayed by thirty-one days, so, for example, Complainants will disclose expert witnesses by September 17, 2018.


Erin M. Wirth
Administrative Law Judge